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presented to THE CHIEF JUSTICE, and by him referred to the Court, denied. Applicants request that if we deny this application we grant a limited stay of 120 hours to allow them to come into compliance with the final Rule. We refer the issue of such stay to the D. C. Circuit for its consideration. JUSTICE THOMAS and JUSTICE GORSUCH would grant the application.

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Miscellaneous Orders

No. 18A1053. DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. *v.* PRICE. Application to vacate the stay of execution, presented to JUSTICE THOMAS, and by him referred to the Court, is granted, and the stays entered by the District Court for the Southern District of Alabama and the United States Court of Appeals for the Eleventh Circuit on April 11, 2019, are vacated. In June 2018, death-row inmates in Alabama whose convictions were final before June 1, 2018, had 30 days to elect to be executed via nitrogen hypoxia. Ala. Code § 15–18–82.1(b)(2). Price, whose conviction became final in 1999, did not do so, even though the record indicates that all death-row inmates were provided a written election form, and 48 other death-row inmates elected nitrogen hypoxia. He then waited until February 2019 to file this action and submitted additional evidence today, a few hours before his scheduled execution time. See *Gomez v. United States Dist. Court for Northern Dist. of Cal.*, 503 U. S. 653, 654 (1992) (*per curiam*) (“A court may consider the last-minute nature of an application to stay execution in deciding whether to grant equitable relief”).

JUSTICE BREYER, with whom JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join, dissenting.

Should anyone doubt that death sentences in the United States can be carried out in an arbitrary way, let that person review the following circumstances as they have been presented to our Court this evening.

1. This case comes to us on the assumption that executing Christopher Lee Price using Alabama’s current three-drug protocol is likely to cause him severe pain and needless suffering. Price submitted an expert declaration explaining why that is so, and the State “submitted nothing” to rebut his expert’s assertions. *Price v. Commissioner, Ala. Dept. of Corrections*, 920 F.

3d 1317, 1330 (CA11 2019). The Court of Appeals thus correctly held that Price satisfied his burden to show a severe risk of pain from lethal injection, “since the only evidence of record supports that conclusion.” *Ibid.*

2. Price proposed nitrogen hypoxia as an alternative method of execution. Alabama expressly authorized execution by nitrogen hypoxia in 2018, and state officials have actively worked to develop a hypoxia protocol since that time. The State is mere months away from finalizing its protocol. In light of those facts, the Court of Appeals correctly held that nitrogen hypoxia is “available,” “feasible,” and “readily implemented” by the State. *Id.*, at 1326–1329.

3. The only remaining question was whether Price could show that death by nitrogen hypoxia would be substantially less painful than death by the existing lethal injection protocol. To make this showing, Price submitted an academic study on which the Oklahoma Legislature had relied in adopting nitrogen hypoxia as a method of execution. That study noted that death by nitrogen hypoxia has been described as “painless,” “peaceful,” and unlikely to cause “any substantial physical discomfort.” Record in No. 1:19–00057 (SD Ala.), Doc. 45–2, pp. 6, 9. It concluded that nitrogen hypoxia is “an effective and humane alternative to the current methods of capital punishment practiced in Oklahoma.” *Id.*, at 2.

Crucially, as the District Court noted, the State *did not challenge* Price’s evidence on this question. It did not question the reliability of the Oklahoma study. And it did not otherwise dispute (either in the District Court or on appeal) that nitrogen hypoxia was likely to be less painful than the State’s lethal injection protocol. The District Court thus correctly held that “Price is likely to prevail on the issue of whether execution by nitrogen . . . would provide a significant reduction in the substantial risk of severe pain Price would incur if he were executed” by lethal injection. *Price v. Dunn*, 385 F. Supp. 3d 1215, 1233 (SD Ala. 2019).

4. The Court of Appeals found the District Court’s determination on this question clearly erroneous. It reached that conclusion primarily because the version of the Oklahoma study that Price’s counsel submitted was “a preliminary draft report that is stamped with the words ‘Do Not Cite.’” *Price v. Commissioner*, 920 F.3d, at 1330. The Court of Appeals appeared to believe that

a “preliminary” report could not constitute “reliable evidence” on the effects of nitrogen hypoxia. *Ibid.*

5. It turns out, however, that a *final* version of the same Oklahoma study was published and available. That version is identical in every relevant respect to the preliminary version that Price submitted. That is, the final report also describes nitrogen hypoxia as “painless,” “humane,” and unlikely to cause “any substantial physical discomfort,” based on exactly the same evidence discussed in the earlier draft.

6. Price’s counsel, realizing the error, quickly sought to ensure the District Court would be able to consider the final version of the report. Price filed a new motion for preliminary injunction in the District Court, along with the final report and additional expert declarations.

7. The District Court found this new evidence “reliable” and noted that the State had “not submit[ted] anything in contradiction.” *Price v. Dunn*, 2019 WL 1578277, *8 (SD Ala., Apr. 11, 2019). The District Court concluded “based on the current record” that “Price has a substantial likelihood of succeeding on the merits.” *Ibid.* The District Court then considered the remaining stay factors. Notably, the District Court found that Price had *not* “timed his motion in an effort to manipulate the execution.” *Ibid.* “Rather, Price, the State and the [District Court] have been proceeding *as quickly as possible* on this issue *since before the execution date was set.*” *Ibid.* (emphasis added). The District Court ultimately concluded that a 60-day stay of the execution was warranted.

8. The State then asked the Court of Appeals to vacate the stay in part because, in its view, the District Court did not have jurisdiction to issue it. The Court of Appeals had not yet issued its mandate, the appeal remained pending, and, in the State’s view, the arguments Price raised in his new motion in the District Court were the same arguments at issue in his pending appeal. The District Court had rejected the argument that the pending appeal deprived it of jurisdiction; Price, it explained, has “presented a *new* motion for preliminary injunction accompanied by *new* evidence.” *Id.*, at *2 (emphasis added).

9. The Court of Appeals refused to vacate the District Court’s stay. It explained that the parties had raised “substantial questions” about jurisdiction. *Price v. Commissioner, Ala. Dept. of*

Corrections, 2019 WL 1591475, *1 (CA11, Apr. 11, 2019). “In light of the jurisdictional questions raised by the parties’ motions,” it stayed Price’s execution until further order of the court. *Ibid.*

10. Shortly before 9 p.m. this evening, the State filed an application to the Justice of this Court who is the Circuit Justice for the Eleventh Circuit. It was later referred to the Conference. I requested that the Court take no action until tomorrow, when the matter could be discussed at Conference. I recognized that my request would delay resolution of the application and that the State would have to obtain a new execution warrant, thus delaying the execution by 30 days. But in my judgment, that delay was warranted, at least on the facts as we have them now. During the pendency of our consideration, the State called off this evening’s scheduled execution.

The Court nevertheless grants the State’s application to vacate the stay, thus preventing full discussion among the Court’s Members. In doing so, it overrides the discretionary judgment of not one, but two lower courts. Why? The Court suggests that the reason is delay. But that suggestion is untenable in light of the District Court’s express finding that Price has been “proceeding *as quickly as possible* on this issue since *before the execution date was set.*” 2019 WL 1578277, *8 (emphasis added). Surely the District Court is in a better position than we are to gauge whether Price has engaged in undue delay.

The Court also points out that Price did not elect nitrogen hypoxia within 30 days of the legislature authorizing this method of execution on June 1, 2018. State law appeared to provide death row inmates only until June 30, 2018, to make the election. See 2018 Ala. Laws Act 2018–353. Yet based on the limited information before us, it appears no inmate received a copy of the election form (prepared by a public defender) until June 26, and the State makes no representation about when Price received it other than that it was “before the end of June.” Brief for Appellee in No. 19–11268 (CA11), p. 9. Thus, it is possible that Price was given no more than 72 hours to decide how he wanted to die, notwithstanding the 30-day period prescribed by state law. That is not a reason to override the lower courts’ discretionary determination that the equitable factors warrant a stay.

The State also argues that the District Court lacked jurisdiction to entertain Price’s new motion for a preliminary injunction. But as the Court of Appeals appeared to recognize, that jurisdic-

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tional question is a substantial one, the answer to which is by no means clear. See 2019 WL 1591475; cf. 16A C. Wright, A. Miller, E. Cooper, & C. Struve, *Federal Practice and Procedure* § 3949.1, p. 63 (4th ed. 2008) (“An interlocutory appeal ordinarily suspends the power of the district court to modify the order subject to appeal, but does not oust district-court jurisdiction to continue with proceedings that do not threaten the orderly disposition of the interlocutory appeal”). To resolve it with minimal briefing on an extraordinarily compressed timeline would be deeply misguided.

What is at stake in this case is the right of a condemned inmate not to be subjected to cruel and unusual punishment in violation of the Eighth Amendment. At a minimum, “before acting irretrievably” to vacate a stay and allow a potentially cruel execution to proceed, the Court should decide whether the District Court did in fact lack jurisdiction to issue the stay. See *Bowersox v. Williams*, 517 U.S. 345, 347 (1996) (GINSBURG, J., dissenting). “Appreciation of our own fallibility . . . demand[s] as much.” *Ibid.*

* * *

Alabama will soon subject Price to a death that he alleges will cause him severe pain and needless suffering. It can do so *not* because Price failed to prove the likelihood of severe pain and *not* because he failed to identify a known and readily implemented alternative, as this Court has recently required inmates to do. Instead, Alabama can subject him to that death due to a minor oversight (the submission of a “preliminary” version of a final report) and a significant mistake of law by the Court of Appeals (the suggestion that a report marked “preliminary” carries *no* evidentiary value). These mistakes could be easily remedied by simply allowing the lower courts to consider the final version of the report. Yet instead of allowing the lower courts to do just that, the Court steps in and vacates the stays that both courts have exercised their discretion to enter. To proceed in this way calls into question the basic principles of fairness that should underlie our criminal justice system. To proceed in this matter in the middle of the night without giving all Members of the Court the opportunity for discussion tomorrow morning is, I believe, unfortunate.

No. 18–389. PARKER DRILLING MANAGEMENT SERVICES, LTD.
v. NEWTON. C. A. 9th Cir. [Certiorari granted, 586 U. S. 1112.]

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Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–485. *MCDONOUGH v. SMITH, INDIVIDUALLY AND AS SPECIAL DISTRICT ATTORNEY FOR THE COUNTY OF RENSSELAER, NEW YORK*. C. A. 2d Cir. [Certiorari granted, 586 U. S. 1112.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted. Motions of Indiana et al., International Municipal Lawyers Association et al., and St. Thomas More Lawyers Guild of Rochester, New York, for leave to participate in oral argument as *amici curiae* and for divided argument denied.

No. 18–489. *TAGGART v. LORENZEN, EXECUTOR OF THE ESTATE OF BROWN, ET AL.* C. A. 9th Cir. [Certiorari granted, 586 U. S. 1063.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–525. *FORT BEND COUNTY, TEXAS v. DAVIS*. C. A. 5th Cir. [Certiorari granted, 586 U. S. 1113.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–966. *DEPARTMENT OF COMMERCE ET AL. v. NEW YORK ET AL.* C. A. 2d Cir. [Certiorari granted, 586 U. S. 1140.] Motion of the United States House of Representatives for leave to participate in oral argument as *amicus curiae* and for divided argument granted. Joint motion of respondents for enlargement of time for oral argument and for divided argument granted in part, and the time is divided as follows: 40 minutes for petitioners, 20 minutes for respondent New York et al., 10 minutes for respondent New York Immigration Coalition et al., and 10 minutes for United States House of Representatives as *amicus curiae*.

Certiorari Denied

No. 18–8766 (18A1044). *PRICE v. DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. JUSTICE GINSBURG, JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would grant the application for stay of execution. Reported below: 920 F. 3d 1317.

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Certiorari Granted—Vacated and Remanded

No. 18–609. ROBERTSON *v.* UNITED STATES. C. A. 9th Cir. Motion to substitute Carri Robertson, authorized representative, as petitioner in place of Joseph D. Robertson, deceased, granted. Certiorari granted, judgment vacated, and case remanded for consideration of question whether case is moot. Reported below: 875 F. 3d 1281.

No. 18–852. PRECYTHE *v.* JOHNSON. C. A. 8th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Bucklew v. Precythe*, 587 U.S. 119 (2019). Reported below: 901 F. 3d 973.

Certiorari Dismissed

No. 18–7894. MCNEILL *v.* WAYNE COUNTY THIRD CIRCUIT COURT ET AL. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 18–7980. LADEAIROUS *v.* DEPARTMENT OF JUSTICE. C. A. D. C. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion and this petition.

No. 18–7988. FORNEY *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in non-criminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U.S. 1 (1992) (*per curiam*). Reported below: 238 So. 3d 839.

No. 18–8201. BUTLER *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 740 Fed. Appx. 360.

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No. 18–8377. *BOOKER v. JOHNSON ET AL.* C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. Reported below: 717 Fed. Appx. 301.

Miscellaneous Orders

No. 18M125. *GABRIEL NUNEZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*;

No. 18M127. *VAUGHN v. GIBSON, WARDEN, ET AL.*;

No. 18M128. *DIEP v. DIAZ, ACTING SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION*;

No. 18M130. *FAWEMIMO v. AMERICAN AIRLINES, INC.*; and

No. 18M133. *MERAZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 18M126. *DECK v. JENNINGS, WARDEN*. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 18M129. *YI S. v. ADMINISTRATION FOR CHILDREN’S SERVICES OF THE CITY OF NEW YORK*. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court’s Rule 14.5 denied.

No. 18M131. *SEALED APPELLANT v. SEALED APPELLEE*. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 18M132. *REYNOLDS v. UNITED STATES*. Motion for leave to file petition for writ of certiorari under seal with appendix B available for the public record granted.

No. 18–540. *RUTLEDGE, ATTORNEY GENERAL OF ARKANSAS v. PHARMACEUTICAL CARE MANAGEMENT ASSN.* C. A. 8th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 18–7806. *BERKA v. CITY OF MIDDLETOWN, CONNECTICUT*. App. Ct. Conn.;

No. 18–7891. *HAYMOND v. HELMAND INVESTMENT, LLC*. Sup. Ct. Va.;

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No. 18–8023. *A. R. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Dist. Ct. App. Fla., 3d Dist.; and

No. 18–8060. *SOLBERG v. FIRST NATIONAL BANK & TRUST CO. OF WILLISTON ET AL.* Sup. Ct. N. D. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until May 6, 2019, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 18–8475. *IN RE FUNK*;

No. 18–8503. *IN RE WELLS*;

No. 18–8579. *IN RE WETER*; and

No. 18–8587. *IN RE STEGAWSKI*. Petitions for writs of habeas corpus denied.

No. 18–1008. *IN RE HOLLOWELL ET AL.*;

No. 18–1014. *IN RE RUSSO*; and

No. 18–8123. *IN RE FAGAN*. Petitions for writs of mandamus denied.

No. 18–7939. *IN RE SALLEY*. Petition for writ of mandamus denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

Certiorari Denied

No. 18–722. *SOUNDBOARD ASSN. v. FEDERAL TRADE COMMISSION*. C. A. D. C. Cir. Certiorari denied. Reported below: 888 F. 3d 1261.

No. 18–755. *ILLINOIS LIBERTY PAC ET AL. v. RAOUL, ATTORNEY GENERAL OF ILLINOIS, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 904 F. 3d 463.

No. 18–811. *JPAY, INC. v. KOBEL ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 904 F. 3d 923.

No. 18–838. *KASEBURG ET AL. v. PORT OF SEATTLE ET AL.* (Reported below: 744 Fed. Appx. 356); and *HORNISH ET AL. v. KING COUNTY, WASHINGTON* (899 F. 3d 680). C. A. 9th Cir. Certiorari denied.

No. 18–868. *ELECTRIC POWER SUPPLY ASSN. ET AL. v. STAR ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 904 F. 3d 518.

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No. 18–879. *ELECTRIC POWER SUPPLY ASSN. ET AL. v. RHODES ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 906 F. 3d 41.

No. 18–899. *SAINT REGIS MOHAWK TRIBE ET AL. v. MYLAN PHARMACEUTICALS, INC., ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 896 F. 3d 1322.

No. 18–996. *STRINGER v. STORESONLINE, INC., ET AL.* Sup. Ct. Miss. Certiorari denied.

No. 18–1004. *SEAMAN v. WESTFIELD MEDICAL CENTER, L. P., ET AL.* Sup. Ct. Pa. Certiorari denied.

No. 18–1020. *GOUNDER v. COMMUNICAR, INC., ET AL.* App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied.

No. 18–1024. *JOHNSON v. WINFREY.* C. A. 5th Cir. Certiorari denied. Reported below: 901 F. 3d 483.

No. 18–1026. *KINNEY ET AL. v. ANDERSON LUMBER CO., INC., ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–1031. *LITTLE v. CSRA ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 679.

No. 18–1033. *GRIFFIN v. UNITED HEALTHCARE OF GEORGIA, INC., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 793.

No. 18–1034. *MCGEE v. CITY OF SACRAMENTO, CALIFORNIA.* C. A. 9th Cir. Certiorari denied.

No. 18–1035. *THOMAS v. TEXAS.* Ct. App. Tex., 14th Dist. Certiorari denied.

No. 18–1036. *RAMOS v. FIRESTONE BUILDING PRODUCTS Co., LLC.* C. A. 11th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 777.

No. 18–1037. *ZHENG CAI v. DIAMOND HONG, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 901 F. 3d 1367.

No. 18–1039. *LEVIN ET UX. v. JPMORGAN CHASE BANK, N. A.* C. A. 2d Cir. Certiorari denied. Reported below: 751 Fed. Appx. 143.

No. 18–1040. *LICONG LI v. DANG.* App. Ct. Ill., 3d Dist. Certiorari denied.

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No. 18–1041. *KONIECZKO ET AL. v. ADVENTIST HEALTH SYSTEM/SUNBELT, INC., ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 18–1042. *GONZALEZ v. CITY OF HIALEAH, FLORIDA.* C. A. 11th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 611.

No. 18–1045. *BRENT ET AL. v. WAYNE COUNTY DEPARTMENT OF HUMAN SERVICES ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 901 F. 3d 656.

No. 18–1050. *WU ET UX. v. PRUDENTIAL FINANCIAL, INC., ET AL.* C. A. 7th Cir. Certiorari denied.

No. 18–1058. *SMETS v. WILSON, SECRETARY OF THE AIR FORCE.* C. A. 9th Cir. Certiorari denied. Reported below: 716 Fed. Appx. 662.

No. 18–1060. *WEISS, INDIVIDUALLY AND AS EXECUTOR OF THE ESTATE OF MARSH, DECEASED v. MARSH, AS EXECUTOR OF THE ESTATE OF MARSH, DECEASED, ET AL.* (two judgments). Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 18–1071. *STOKES v. SULAK.* C. A. 5th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 589.

No. 18–1072. *MACOR v. UNITED STATES PATENT AND TRADE-MARK OFFICE.* C. A. Fed. Cir. Certiorari denied. Reported below: 742 Fed. Appx. 510.

No. 18–1073. *KING ET AL. v. MURPHY, GOVERNOR OF NEW JERSEY, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–1091. *ADESANYA ET VIR v. NOVARTIS PHARMACEUTICALS CORP.* C. A. 3d Cir. Certiorari denied. Reported below: 755 Fed. Appx. 154.

No. 18–1099. *ROBINSON v. STATE COMPENSATION MUTUAL INSURANCE FUND.* Sup. Ct. Mont. Certiorari denied. Reported below: 393 Mont. 178, 430 P. 3d 69.

No. 18–1110. *DAUGHTREY ET AL. v. RIVERA.* C. A. 11th Cir. Certiorari denied. Reported below: 896 F. 3d 1255.

No. 18–1114. *TS PATENTS LLC v. YAHOO! INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 731 Fed. Appx. 978.

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No. 18–1133. *LANGER ET AL. v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 8th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 804.

No. 18–1135. *SHAKARI v. ILLINOIS DEPARTMENT OF FINANCIAL AND PROFESSIONAL REGULATION ET AL.* App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2018 IL App (1st) 170285, 97 N. E. 3d 199.

No. 18–1141. *BROWN v. NEW HAMPSHIRE BOARD OF VETERINARY MEDICINE*. Sup. Ct. N. H. Certiorari denied. Reported below: 171 N. H. 468, 198 A. 3d 276.

No. 18–1155. *MURPHY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 471.

No. 18–1163. *HUTCHINGS ET AL. v. AMEREN TRANSMISSION COMPANY OF ILLINOIS*. Sup. Ct. Ill. Certiorari denied. Reported below: 2018 IL 122973, 120 N. E. 3d 998.

No. 18–1169. *THORNE v. UNION PACIFIC CORP. ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 875.

No. 18–1194. *CRUTCHFIELD v. DENNISON, WARDEN*. C. A. 7th Cir. Certiorari denied. Reported below: 910 F. 3d 968.

No. 18–1204. *HAYNIE v. UNITED AIRLINES, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 273.

No. 18–6450. *RUSSELL v. EPPINGER, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–6672. *MILLAN VASQUEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 899 F. 3d 363.

No. 18–6777. *HYATT v. MICHIGAN*; and

No. 18–6782. *SKINNER v. MICHIGAN*. Sup. Ct. Mich. Certiorari denied. Reported below: 502 Mich. 89, 917 N. W. 2d 292.

No. 18–6905. *SZCZERBA v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 897 F. 3d 929.

No. 18–6908. *MANNERS v. CANNELLA ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 891 F. 3d 959.

No. 18–6919. *SANTOS-CORDERO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 530.

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No. 18–7033. *JACKSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–7091. *BUTLER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 528.

No. 18–7204. *ROLON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–7217. *C. G., A MINOR v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied.

No. 18–7219. *AMADOR ET AL. v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 541.

No. 18–7226. *BLANCO v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 249 So. 3d 536.

No. 18–7233. *SWOPES v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 892 F. 3d 961.

No. 18–7379. *BRUNO GARCIA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 739 Fed. Appx. 601.

No. 18–7618. *NEAL v. ASTA FUNDING, INC.* C. A. 3d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 184.

No. 18–7733. *COWAN v. ASUNCION, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7743. *DRISCOLL v. GASTELO, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7744. *CLARK v. ALABAMA*. Sup. Ct. Ala. Certiorari denied.

No. 18–7749. *GONZALEZ v. MALOY*. Sup. Ct. Fla. Certiorari denied.

No. 18–7752. *HARIHAR v. U. S. BANK N. A. ET AL.* C. A. 1st Cir. Certiorari denied.

No. 18–7753. *MUNT v. MINNESOTA*. Sup. Ct. Minn. Certiorari denied. Reported below: 920 N. W. 2d 410.

No. 18–7757. *DAVENPORT v. FALK, WARDEN, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 728 Fed. Appx. 877.

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No. 18–7767. *SANCHEZ v. TEXAS*. Ct. App. Tex., 4th Dist. Certiorari denied.

No. 18–7771. *BROTHERTON v. CASSADY, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–7772. *FRANKLIN v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 152 Ohio St. 3d 1419, 2018-Ohio-923, 93 N. E. 3d 1001.

No. 18–7774. *BOYETT v. SANTISTEVAN, WARDEN, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 569.

No. 18–7775. *OLIVARES v. MICHIGAN WORKERS' COMPENSATION AGENCY ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–7782. *MASON v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 18–7785. *DERRINGER v. SAENZ*. Sup. Ct. N. M. Certiorari denied.

No. 18–7786. *SHOTWELL v. GENOVESE, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7789. *RICHARDS v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–7791. *SMITH v. CITY OF PRINCETON, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–7798. *VOSS v. SECOND JUDICIAL DISTRICT COURT OF NEVADA, WASHOE COUNTY*. Ct. App. Nev. Certiorari denied. Reported below: 134 Nev. 1025.

No. 18–7803. *HEGSTROM v. FLORIDA*. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 258 So. 3d 554.

No. 18–7813. *BARTON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7815. *DEASE v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 18–7816. *BROOKS v. WEISER, ATTORNEY GENERAL OF COLORADO, ET AL.* Sup. Ct. Colo. Certiorari denied.

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No. 18–7820. *PIERCE v. HOOKS*. C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 187.

No. 18–7822. *MCDONALD v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 18–7827. *KAUFMAN v. KEMPER, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 18–7828. *LARGO v. NEW YORK*. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied.

No. 18–7832. *HARRIS v. MULLINS, JUDGE, SUPERIOR COURT OF ARIZONA, MARICOPA COUNTY, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7834. *BOGSETH v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 18–7837. *BLACHER v. SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY, ET AL.* Ct. App. Cal., 1st App. Dist., Div. 1. Certiorari denied.

No. 18–7845. *GRIGSBY v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 375.

No. 18–7850. *HOWARD v. LESATZ, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7851. *YOUNG v. ASUNCION, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7852. *HUG v. CONLEY, WARDEN*. Sup. Ct. Ga. Certiorari denied.

No. 18–7853. *FLETCHER v. SCHWARTZ ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 71.

No. 18–7855. *THUNDER v. WEBER, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–7860. *BARNES v. MICHIGAN*. Sup. Ct. Mich. Certiorari denied. Reported below: 502 Mich. 265, 917 N. W. 2d 577.

No. 18–7864. *COTTON v. HARRIS, WARDEN*. Sup. Ct. Ohio. Certiorari denied. Reported below: 153 Ohio St. 3d 1428, 2018-Ohio-2418, 100 N. E. 3d 444.

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No. 18–7865. *DROZDOVSKA v. SEMINOLE COUNTY, FLORIDA*. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 237 So. 3d 454.

No. 18–7867. *BRADLEY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7873. *SIERRA v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7879. *COLKLEY v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 235 Md. App. 734.

No. 18–7885. *VANGUILDER v. MARTUSCELLO, SUPERINTENDENT, COXSACKIE CORRECTIONAL FACILITY*. C. A. 2d Cir. Certiorari denied.

No. 18–7888. *SALOMON v. NOGAN, ADMINISTRATOR, EAST JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–7889. *ROMERO v. ILLINOIS*. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2018 IL App (1st) 143132, 105 N. E. 3d 1048.

No. 18–7892. *HALOUSEK v. CALIFORNIA PUBLIC EMPLOYEES' RETIREMENT SYSTEM*. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 18–7893. *HALOUSEK v. BANK OF AMERICA, N. A.* Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 18–7897. *OWENS v. ZUCKER ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7899. *DEWBERRY v. THIRD CIRCUIT COURT OF MICHIGAN*. C. A. 6th Cir. Certiorari denied.

No. 18–7901. *COHEE v. YATES, WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 717.

No. 18–7902. *AKOTHE v. BEAR, WARDEN, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 207.

No. 18–7906. *FLORES v. TEXAS*. Ct. App. Tex., 13th Dist. Certiorari denied.

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No. 18–7908. *HAYNES v. WALMART ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7909. *WILSON v. CORRECT CARE, LLC, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7912. *TISDALE v. FLORIDA.* Sup. Ct. Fla. Certiorari denied. Reported below: 257 So. 3d 357.

No. 18–7917. *WILKINS v. MICHIGAN.* Ct. App. Mich. Certiorari denied.

No. 18–7919. *GRUND v. MURPHY ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 601.

No. 18–7924. *LYLES v. BROACH ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 247.

No. 18–7925. *ALI v. FINANCIAL INDUSTRY REGULATORY AUTHORITY, INC.* C. A. 9th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 438.

No. 18–7926. *BABB v. SMITH ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7932. *HAMER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

No. 18–7933. *CHARLESTON v. WOODS, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–7934. *FARTHING v. WATSON, WARDEN.* C. A. 4th Cir. Certiorari denied. Reported below: 712 Fed. Appx. 295.

No. 18–7935. *SMITH v. HOFFNER, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–7936. *HENDERSON v. SKIPPER, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–7940. *JOHNS v. ALABAMA DEPARTMENT OF HUMAN RESOURCES.* C. A. 11th Cir. Certiorari denied.

No. 18–7942. *LANCASTER v. RUANE.* C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 372.

No. 18–7945. *WATTS v. MICHIGAN.* Ct. App. Mich. Certiorari denied.

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No. 18–7953. *PETERSON ET UX. v. NEW HAMPSHIRE DIVISION OF CHILDREN, YOUTH AND FAMILIES, ET AL.* Sup. Ct. N. H. Certiorari denied.

No. 18–7955. *BARNES v. BAUGHMAN, WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 18–7956. *IBEABUCHI v. PENZONE.* C. A. 9th Cir. Certiorari denied.

No. 18–7957. *IBEABUCHI v. STEINFELD.* C. A. 9th Cir. Certiorari denied.

No. 18–7959. *MAZE v. TERRELL ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–7962. *ABDULLAH v. PLANT CITY POLICE DEPARTMENT ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–7963. *REYNOLDS v. NAGY, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–7967. *SMITH v. TEXAS.* Ct. App. Tex., 5th Dist. Certiorari denied.

No. 18–7970. *CALDERON-LOPEZ v. BERRYHILL, ACTING COMMISSIONER OF SOCIAL SECURITY, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 569.

No. 18–7976. *ADGER v. NEW YORK.* App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied. Reported below: 156 App. Div. 3d 1458, 66 N. Y. S. 3d 584.

No. 18–7982. *JAIMES-AVILES v. FLORIDA.* Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 257 So. 3d 431.

No. 18–7985. *BAHRAMPOUR v. UNITED STATES.* C. A. 9th Cir. Certiorari denied.

No. 18–7987. *IBEABUCHI v. PENZONE ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7990. *BROOKINS v. FLORIDA.* Sup. Ct. Fla. Certiorari denied.

No. 18–7991. *KERSEY v. TRUMP, PRESIDENT OF THE UNITED STATES.* C. A. 1st Cir. Certiorari denied.

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No. 18–7992. *LIVINGSTON v. ESSLINGER ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 352.

No. 18–7998. *BYRD v. LINDSEY ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 465.

No. 18–7999. *GALAN v. GEGENHEIMER ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 84.

No. 18–8000. *FREEMAN v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS.* C. A. 11th Cir. Certiorari denied.

No. 18–8001. *FYKES v. WEST VIRGINIA.* Sup. Ct. App. W. Va. Certiorari denied.

No. 18–8004. *CRAIG v. BRADLEY, WARDEN, ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–8007. *BEAGLE v. LINDSEY, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–8008. *DRAPER v. MUY PIZZA SOUTHEAST LLC, DBA PIZZA HUT.* C. A. 4th Cir. Certiorari denied. Reported below: 739 Fed. Appx. 187.

No. 18–8030. *RHINES v. YOUNG, WARDEN.* C. A. 8th Cir. Certiorari denied. Reported below: 899 F. 3d 482.

No. 18–8062. *TAYLOR v. DISTRICT OF COLUMBIA DEPARTMENT OF EMPLOYMENT SERVICES.* Ct. App. D. C. Certiorari denied. Reported below: 193 A. 3d 749.

No. 18–8069. *GONZALEZ v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 906 F. 3d 784.

No. 18–8074. *MORGAN v. LOUISIANA.* Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2017–0932 (La. App. 1 Cir. 2/20/18).

No. 18–8077. *ESTES v. BAKER, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 143.

No. 18–8078. *WALKER v. CALDWELL, WARDEN.* C. A. 11th Cir. Certiorari denied.

No. 18–8085. *THOMASON v. UNITED STATES DISTRICT COURT FOR THE MIDDLE DISTRICT OF ALABAMA.* C. A. 11th Cir. Certiorari denied.

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No. 18–8088. *MENIUS v. STEPHAN, WARDEN, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 195.

No. 18–8093. *FERREIRA v. GEORGIA.* Ct. App. Ga. Certiorari denied. Reported below: 345 Ga. App. XXV.

No. 18–8118. *DAVIS v. LOUISIANA.* Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2016–1524 (La. App. 1 Cir. 7/5/17).

No. 18–8119. *JENKINS v. HAMILTON, WARDEN.* C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 158.

No. 18–8120. *LOFTON v. MISSISSIPPI.* Sup. Ct. Miss. Certiorari denied. Reported below: 248 So. 3d 798.

No. 18–8126. *WILSON v. STEPHAN, WARDEN.* C. A. 4th Cir. Certiorari denied. Reported below: 728 Fed. Appx. 230.

No. 18–8134. *VASQUEZ v. PENNSYLVANIA.* Super. Ct. Pa. Certiorari denied. Reported below: 188 A. 3d 543.

No. 18–8136. *ONG VUE v. BARR, ATTORNEY GENERAL.* C. A. 10th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 910.

No. 18–8146. *GEER v. FLORIDA.* Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 257 So. 3d 447.

No. 18–8147. *HORN v. KANSAS.* Ct. App. Kan. Certiorari denied. Reported below: 53 Kan. App. 2d xii, 386 P. 3d 929.

No. 18–8150. *LIVIZ v. SUPREME JUDICIAL COURT OF MASSACHUSETTS ET AL.* C. A. 1st Cir. Certiorari denied.

No. 18–8155. *SMITH v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8161. *LORD v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 549.

No. 18–8164. *FREEMAN v. LASHBROOK, WARDEN.* Sup. Ct. Ill. Certiorari denied.

No. 18–8173. *HERRERA v. PRICE.* C. A. 9th Cir. Certiorari denied.